

25AVCV01119 25AVCV01119

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Case Number: 25AVCV01119 Hearing Date: September 15, 2026 Dept: A14

25AVCV01119 EVELYN NIEBLA, et al. vs

38665 11TH STREET EAST, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY, et al

Before the Court is Defendants'

Demurrer to Plaintiffs' Complaint. On September 2, 2025, Plaintiffs filed their initial Complaint. On March 10, 2026, Plaintiffs filed their First Amended Complaint ("FAC"). On June 3, 2026, Defendants filed their demurrer to the "Complaint."

The Demurrer on file appears directed at the Complaint of September 2, 2025. For instance:

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Demurrer reads: "the Complaint alleges that emotional distress arose from the duty to maintain the Property in a habitable condition. (Complaint, ¶ 42)." (Demurrer, p. 8:7-9.) This correlates to ¶ 42 in the initial Complaint, but ¶ 42 of the FAC reads: "Subject to the terms of Plaintiffs' leases and/or applicable law, Plaintiffs are entitled to an award of attorney's fees and costs."

The

Demurrer reads: "the Complaint alleges that the duty in question is 'the obligation to provided Plaintiffs with safe and habitable housing...' (Complaint, ¶ 54.)" (Demurrer, p. 7:27-8:1.) The quoted language is present in ¶ 54 of the Complaint, but ¶ 54 of the FAC reads: "Plaintiffs re-allege and incorporate by reference each and every allegation described above as though set forth in full hereat."

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Demurrer reads: "the Complaint alleges that the private nuisance resulted from 'vermin infestation, mold, water leaks, and other physical defects impacting the Property...' (Complaint, ¶ 65)." (Demurrer, p. 8:26-27.) Again, this is consistent with ¶ 65 of the Complaint, while ¶ 65 of the FAC reads: "Subject to the terms of Plaintiffs' leases and/or applicable law, Plaintiffs are entitled to an award of attorney's fees and costs."

To further confuse matters, Plaintiffs opposition appears to assume that the Demurrer is directed towards the FAC.

The Court notes that, from the record before it, it is not entirely clear that the FAC was served on Defendants. The three Proofs of Service filed by Plaintiffs (two filed on 4/10, one filed on 6/1) state the Complaint and other papers were served on Defendants but make no mention of service of the FAC. It could be that the "Complaint" referred to in the proofs of service is the FAC, but that is not apparent.

Given this confusion, the Court has no tentative ruling at this time. The Court will discuss with the parties the state of the pleadings at the hearing.